

[20 GEO. 5.]

Ministry of Health

[Ch. xlv.]

*Provisional Order Confirmation (Conway and
Penmaenmawr Joint Hospital District) Act, 1930.*



CHAPTER xlv.

An Act to confirm a Provisional Order of the Minister of Health relating to Conway and Penmaenmawr Joint Hospital District.

A.D. 1930.

[28th March 1930]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament :

38 & 39 Vict.
c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force.

Order in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Conway and Penmaenmawr Joint Hospital District) Act 1930.

Short title.

A.D. 1930.

SCHEDULE.

CONWAY AND PENMAENMAWR JOINT HOSPITAL DISTRICT.

*Conway
and Pen-
maenmawr
Order.*

*Provisional Order altering the Conway and Penmaenmawr
Joint Hospital Order 1910.*

WHEREAS by virtue of the Conway and Penmaenmawr Joint Hospital Order 1910 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 10) Act 1910 the borough of Conway the urban district of Penmaenmawr and the rural districts of Conway and Glan Conway respectively constitute a united district called the Conway and Penmaenmawr Joint Hospital District for the provision of a hospital for infectious diseases and the governing body of the united district is the Conway and Penmaenmawr Joint Hospital Board;

And whereas application has been made to the Minister of Health to include in the united district the urban districts of Bettws-y-Coed and Llanrwst and the rural districts of Geirionydd and Llanrwst :

Now therefore the Minister of Health in pursuance of the powers given to him by section 297 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short titles
and com-
mencement.

1.—(1) This order may be cited as the Conway and Penmaenmawr Joint Hospital Order 1930 and this order and the Conway and Penmaenmawr Joint Hospital Order 1910 may be cited together as the Conway and Penmaenmawr Joint Hospital Orders 1910 and 1930.

(2) This order shall come into operation on the first day of April nineteen hundred and thirty.

Interpre-
tation.

2. In this order unless the context otherwise requires—

“ the appointed day ” means the first day of April nineteen hundred and thirty ;

“ the Joint Board ” means the Conway and Penmaenmawr Joint Hospital Board ;

“ the new constituent authorities ” means the urban district councils of Bettws-y-Coed and Llanrwst and the rural district councils of Geirionydd and Llanrwst ;

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“ the order of 1910 ” means the Conway and Penmaenmawr Joint Hospital Order 1910; and A.D. 1930.

“ the United District ” means the Conway and Penmaenmawr Joint Hospital District. *Conway and Penmaenmawr Order.*

3. The United District shall be extended so as to include the urban districts of Bettws-y-Coed and Llanrwst and the rural districts of Geirionydd and Llanrwst and subject to the provisions of this order references in the order of 1910 to constituent districts and constituent authorities shall be deemed to include the said urban and rural districts and the councils thereof respectively. Extension of United District.

4. The Schedule to this order shall be substituted for the Schedule to the order of 1910. Substitution of schedule to this order for schedule to order of 1910.

5.—(1) The number of members ex officio of the Joint Board shall be increased from three to six and subject to the provisions of this order those ex-officio members shall be the persons described in column 3 of the Schedule to this order. Members ex officio of Joint Board.

(2) If the mayor of the borough of Conway or the chairman of any district council mentioned in the Schedule to this order—

(a) is unwilling to act ex officio as a member of the Joint Board; or

(b) is disqualified or becomes disqualified as a member of the Joint Board;

he shall send the clerk to the Joint Board an intimation in writing of his unwillingness to act or disqualification as the case may be and thereupon the deputy-mayor of the borough of Conway or the vice-chairman of the district council unless he is disqualified for being a member of the Joint Board shall become the member of the Joint Board who ex officio represents that borough or district.

(3) If any person shall hold more than one of the offices described in column 3 of the Schedule to this order he shall (unless he is unwilling to act as or is disqualified for being a member of the Joint Board) inform the clerk to the Joint Board in writing of the name of the constituent district which he desires to represent ex officio as a member of the Joint Board and the deputy-mayor or vice-chairman of the council of the constituent district not so selected (unless he is disqualified for being a member of the Joint Board) shall thereupon become the member of the Joint Board who ex officio represents that constituent district.

6. The number of elective members of the Joint Board shall be increased from eleven to fifteen and the number of members to be elected by each of the constituent authorities shall be that set opposite the name of that authority in column 4 of the Schedule to this order. Elective members of Joint Board.

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Election of
 additional
 members by
 constituent
 authorities.

7.—(1) In April nineteen hundred and thirty or in such later month as the Minister of Health may direct each of the new constituent authorities shall elect the number of elective members of the Joint Board mentioned in column 4 of the Schedule to this order and the council of the borough of Conway shall elect one additional member of the Joint Board.

(2) At least seven days' notice in writing of the meeting at which members of the Joint Board will be elected under this article shall be given or sent to each member of the constituent authority by their clerk.

(3) The clerk to the constituent authority shall forthwith inform the clerk to the Joint Board in writing of the names addresses and occupations of the members of the Joint Board elected by that constituent authority and the persons so elected shall come into office upon their election.

Elective
 representa-
 tives of
 Conway and
 Glan Con-
 way rural
 districts.

8.—(1) The number of elective members of the Joint Board who represent the rural districts of Conway and Glan Conway shall be reduced from five to three.

(2) One of the elective members representing the rural districts of Conway and Glan Conway on the Joint Board shall be a councillor representing a parish in the rural district of Glan Conway.

(3) The rural district council of Conway at a meeting to be held in April nineteen hundred and thirty or in such later month as the Minister of Health may allow by a majority of votes or in the case of an equality of votes by the casting vote of the presiding chairman shall select from the elective members of the Joint Board who then represent the rural districts of Conway and Glan Conway three persons of whom one shall possess the qualification prescribed by paragraph (2) of this article.

(4) The three persons so selected shall continue in office as members of the Joint Board until the day on which they would have retired from office if this order had not been made and the persons not so selected for continuance in office shall thereupon cease to be members of the Joint Board.

Financial
 adjustments.

9.—(1) By way of a financial adjustment between each of the new constituent authorities and the Joint Board the new constituent authorities shall pay the undermentioned sums to the Joint Board within two months after the appointed day that is to say—

(a) The urban district council of Bettws-y-Coed one hundred and thirty-seven pounds;

(b) The urban district council of Llanrwst three hundred and seventeen pounds;

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- (c) The rural district council of Geirionydd five hundred and fifty-five pounds; and
 (d) The rural district council of Llanrwst five hundred and eighty-one pounds.

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 maenmawr
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(2) The payments to be made by each of the new constituent authorities under this article shall be a purpose for which the constituent authority may borrow under and in accordance with the provisions of section 233 of the Public Health Act 1875.

(3) The sums received by the Joint Board under this article shall be applied by them in the repayment of debt or with the sanction of the Minister to any other purpose for which capital money may be applied.

(4) Any payment not made by a new constituent authority within the period prescribed by this article shall carry interest payable to the Joint Board at the rate of five per cent. per annum from the latest day on which the sum should have been paid by the new constituent authority.

(5) The provisions of this article represent an agreement made between the Joint Board and the new constituent authorities for the purpose of obviating any other financial adjustment in consequence of the extension of the United District and shall operate in satisfaction of any claim by the Joint Board on the one hand or by any of the new constituent authorities on the other hand to any other financial adjustment of the property and liabilities of the Joint Board in consequence of the provisions of this order.

10. All property immediately before the appointed day vested in the Joint Board for the benefit of the United District shall by virtue of this order be held by the Joint Board for the benefit of the United District as extended by this order and all liabilities which immediately before the appointed day attach to the Joint Board shall attach to them in respect of the United District as extended by this order.

Property and
 liabilities
 of Joint
 Board.

11. Articles 23 and 24 of the order of 1910 which relate to the adaptation of that order on an alteration being made in the area of a constituent district and to the settlement by arbitration of differences arising out of that order shall have effect as if any reference in those articles to the order of 1910 included a reference to this order.

Application
 of certain
 provisions
 of order
 of 1910.

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SCHEDULE.

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1.	2.	3.		4.
Name of district.	Name of district council.	Ex officio members.		Elective members.
		Num-ber.	Description.	
The borough of Conway.	The council of the borough of Conway.	1	The mayor of the borough.	4
The urban district of Bettws-y-Coed.	The urban district council of Bettws-y-Coed.	0	—	1
The urban district of Llanrwst.	The urban district council of Llanrwst.	1	The chairman of the urban district council.	1
The urban district of Penmaenmawr.	The urban district council of Penmaenmawr.	1	The chairman of the urban district council.	2
The rural district of Conway.	The rural district council of Conway.	1	The chairman of the rural district council.	3
The rural district of Glan Conway.				
The rural district of Geirionydd.		1	The chairman of the rural district council.	2
The rural district of Llanrwst.	The rural district council of Llanrwst.	1	The chairman of the rural district council.	2

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